

A.D. 1911.

S C H E D U L E.

ABERDEEN CORPORATION.

*Provisional Order to confer further powers on the lord provost
magistrates and town council of the city and Royal burgh of
Aberdeen.*

WHEREAS the lord provost magistrates and town council of the city and Royal burgh of Aberdeen (hereinafter called "the Corporation" and "the city" respectively) are vested with the municipal and police administration of the city:

And whereas it is expedient that the Corporation should be authorised to erect and use on the lands hereinafter described a refuse destructor for the purpose of disposing of the refuse of the city and to utilise or sell the products of the working of the refuse destructor:

And whereas the Corporation are the undertakers for the purposes of the supply of electricity within the city and the adjacent area as defined by the Aberdeen Corporation Electricity Act 1907 and also own tramways within the city and work the traffic thereon by electrical power:

And whereas it is expedient that the Corporation should be authorised to utilise the power generated by the working of the refuse destructor:

And whereas the Corporation have purchased from the parish council of the city parish of Aberdeen the lands required for the purposes of the refuse destructor together with the other lands described in the First Schedule to this Order and it is expedient that the said purchase should be confirmed and that the Corporation should be authorised to hold those other lands for the general purposes of the Aberdeen Police and Waterworks Act 1862:

And whereas estimates have been prepared by the Corporation for the purchase of lands and for the construction

of the refuse destructor and such estimates are as follows A.D. 1911.
(namely) :—

For the purchase of lands required for the refuse	£
destructor and for general purposes - -	6,500
For the construction of the refuse destructor and	
the providing of machinery plant and other	
necessary appliances - - -	48,500 :

And whereas the several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the Corporation under the authority of the Aberdeen Improvement Confirmation Act 1884 have carried out a scheme for the improvement of an insanitary area known as the Shorelands Improvement Scheme and there is now a free annual revenue resulting from the said scheme of two hundred and fifty pounds and upwards and it is expedient that the Corporation should be authorised to carry the said revenue to the credit of the second head of the annual estimate made up in pursuance of the Aberdeen Corporation Act 1891 for the purposes of the city rate by that Act authorised :

And whereas for the purpose of certain assessments provision is made by the Aberdeen Corporation Act 1891 for the valuation of underground gas and water pipes and underground works connected therewith at one fourth of their yearly value and it is expedient that a similar provision should be made with respect to underground electric mains and lines and underground works connected therewith :

And whereas it is expedient to make provision for a supplementary valuation roll for the city :

And whereas it is expedient to make further provision for the recovery of rates and assessments levied by the Corporation :

And whereas under the powers contained in the Aberdeen Extension and Improvement Act 1883 the Corporation have constructed along certain streets in the city a railway connecting the gasworks of the Corporation with the rails of the Aberdeen Harbour Commissioners :

And whereas by that Act regulations were made for the working of the traffic on the railway and it is expedient in order to facilitate the working of traffic over the railway that the regulations should be relaxed :

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Confirmation Act, 1911.

A.D. 1911. And whereas the Corporation in the month of July 1904 adopted certain provisions of the Burgh Police (Scotland) Act 1903 relating to the licensing and regulation of theatres and places of amusement and billiard rooms and it is expedient that the adoption of those provisions should be repealed and that the corresponding provisions of the Aberdeen Police and Improvement Act 1900 should be repealed and re-enacted with amendments as in this Order provided :

And whereas it is expedient to amend the provisions of the Aberdeen City Acts 1862 to 1907 in other respects as in this Order provided :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

Short title
and citations. 1. This Order may be cited as the Aberdeen Corporation Order 1911 and this Order and the Aberdeen City Acts 1862 to 1907 may be cited together as the Aberdeen City Acts 1862 to 1911.

Commence-
ment of
Order. 2. This Order shall come into operation at the date of the passing of the Act confirming this Order which date is hereinafter referred to as “the commencement of this Order.”

Interpreta-
tion. 3. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say) :—

“The city.” means the city and Royal burgh of Aberdeen ;

“The Corporation” means the lord provost magistrates and town council of the city ;

“The Act of 1862” means the Aberdeen Police and Waterworks Act 1862 ;

“The Act of 1881” means the Aberdeen Corporation Act 1881 ;

“The Act of 1891” means the Aberdeen Corporation Act 1891 ;

“The Act of 1900” means the Aberdeen Police and Improvement Act 1900; A.D. 1911.

“The Aberdeen Electric Lighting Acts” means the Aberdeen Electric Lighting Order 1890 and the Aberdeen Corporation Electricity Act 1907;

“The Aberdeen Tramways Acts” means the Aberdeen Tramways Acts 1872 to 1903;

“The city Acts” means the Aberdeen City Acts 1862 to 1907;

“The city rate” means the city rate authorised to be levied by the Act of 1891;

“The Sheriff” means the sheriff of Aberdeen Kincardine and Banff and includes his substitutes;

“The Magistrates” means the magistrates of the city and includes the lord provost and bailies and “magistrate” means any one of the magistrates.

4. The Corporation may upon the lands or any part of the lands described in Part I. of the First Schedule to this Order erect maintain alter improve enlarge extend and use a refuse destructor for the purpose of destroying the refuse of the city and in connection therewith an electrical generating station and such machinery plant and other subsidiary works and appliances as the Corporation may from time to time deem expedient for utilising the heat and power generated by the destruction of refuse and for using storing or disposing of the materials or things produced in the working of the refuse destructor.

Power to erect refuse destructor and electrical generating station.

5. The Corporation may convert any clinker or other refuse or surplus material or product arising in connection with the refuse destructor into slabs of artificial stone bricks concrete mortar and other materials and may construct such buildings and works and may in connection therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from such utilisation or sales to the credit of the revenue account of the refuse destructor.

Power to manufacture slabs &c. from destructor refuse.

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As to elec-
tricity gene-
rated at
refuse des-
tructor.

6. Any electrical power generated by the Corporation on the lands described in Part I. of the First Schedule to this Order may be used on the said lands for any purpose connected with the work of the Corporation or subject to the provisions of the Aberdeen Electric Lighting Acts and the Aberdeen Tramways Acts respectively may be used for the purposes of the electricity undertaking or tramway undertaking of the Corporation respectively or may be used for all or any of those purposes and the value of any electrical power so used shall be credited in the revenue account of the refuse destructor.

For protec-
tion of Post-
master-
General's
telegraphs.

7. The protection for the Postmaster-General and his telegraphic lines contained in the Aberdeen Electric Lighting Acts shall extend and apply to the generation and use of electrical power for any purpose connected with the work of the Corporation on the lands described in Part I. of the First Schedule to this Order.

Confirming
purchase of
lands.

8. The purchase by the Corporation of the lands described in the First Schedule to this Order is hereby confirmed and the Corporation may apply to that purpose any moneys borrowed under the authority of this Order for that purpose For the purposes of section 3 of the Housing of the Working Classes Act 1903 as applied to Scotland by the Housing and Town Planning &c. Act 1909 such lands shall be deemed to have been acquired under the powers of this section.

Certain
lands to be
used for
general
purposes.

9. The Corporation may hold and use for the general purposes of the Act of 1862 and the Acts amending and extending the same the lands described in Part II. of the First Schedule to this Order or may sell or dispose of the said lands or any part or parts thereof Any moneys arising from the sale of the said lands shall be carried to the credit of the capital account of the refuse destructor Provided that nothing in this Order shall exonerate the Corporation from any action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them on the said lands.

Power to
borrow addi-
tional moneys
on security of
city rate.

10. The Corporation may from time to time borrow on the security and credit of the city rate—

(A) For the purchase of lands by this Order confirmed the sum of six thousand five hundred pounds;

(B) For the construction of the refuse destructor and electrical generating station and relative works and appliances the sum of forty-eight thousand five hundred pounds;

(c) For paying the costs of preparing for obtaining and confirming this Order the sum requisite for that purpose: A.D. 1911.

And the Corporation may make and grant bonds and assignments for the money so to be borrowed and if after having borrowed the said sums or any part thereof the Corporation pay off the same except in manner hereinafter provided they may again borrow the amount so paid off and so from time to time and the provisions of the Act of 1891 with respect to the form of mortgage or assignation shall in so far as applicable apply to the moneys to be borrowed under the authority of this Order for those purposes.

11. The Corporation shall make provision for the repayment of the moneys borrowed under the immediately preceding section of this Order within the periods mentioned in this section by one or other of the following methods as they may see fit (that is to say) either by repaying an equal portion of principal every year or by means of equal annual instalments of principal and interest. Repayment
of moneys
borrowed.

The periods hereinbefore referred to are the following:—

As to moneys borrowed for the purpose (A) mentioned in the said section fifty years from the date or respective dates of borrowing the same:

As to moneys borrowed for the purpose (B) mentioned in the said section thirty years from the date or respective dates of borrowing the same:

As to moneys borrowed for the purpose (C) mentioned in the said section five years from the commencement of this Order.

12. The interest on the money borrowed under the authority of the section of this Order whereof the marginal note is "Power to borrow additional moneys on security of city rate" and the sums to be provided annually in pursuance of the section of this Order whereof the marginal note is "Repayment of moneys borrowed" and any deficiency that may arise in connection with the working of the refuse destructor shall be deemed expenditure under the first head of the estimate made up in terms of section 39 of the Act of 1891 and shall be included in the city rate and the proportion of such rate corresponding thereto shall be payable by the occupiers of all lands and heritages within the city and this Order shall be a city Act within the Assessment.

A.D. 1911. meaning of the Act of 1891 and subject to the provisions of this Order the power of borrowing money granted by this Order shall be deemed a borrowing power of the Corporation within the meaning of the Act of 1891.

Accounts. 13. In the accounts of the Corporation relative to the refuse destructor and electrical generating station by this Order authorised the receipts and expenditure in connection with the refuse destructor shall as far as may be reasonably practicable be distinguished from the receipts and expenditure in connection with the said electrical generating station.

Application of surplus revenue from Shorelands Improvement Scheme. 14. The Corporation may in preparing the annual estimate made up in terms of the Act of 1891 of the sums of money necessary to be levied by the Corporation for the purpose of the city rate carry to the credit of the second head of the said estimate the surplus accruing in each year from the revenues of the Shorelands Improvement Scheme authorised by the Aberdeen Improvement Confirmation Act 1884.

Valuation of underground electric mains. 15. Section 42 (Lands &c. how to be valued) of the Act of 1891 shall be read and have effect as if the words "electric mains and lines" were inserted after the word "pipes" in subsection 1 (B) of that section.

Adoption of sections 45 and 60 of Burgh Police (Scotland) Act 1903. 16. Section 45 (Fractions of a pound not to be reckoned in assessing) and section 60 (Supplementary valuation roll) of the Burgh Police (Scotland) Act 1903 set forth in the Third Schedule to this Order shall be deemed to have been duly adopted by the Corporation in terms of the Burgh Police (Scotland) Acts 1892 and 1903 and shall come into force in the city at the commencement of and as part of this Order.

Recovery of rates and assessments. 17. Section 106 (Mode of recovery of assessments) of the Act of 1862 is hereby repealed and the following provisions shall apply and have effect in lieu thereof with respect to the recovery of the rates and assessments levied by the Corporation:—

- (1) The collector shall issue a written or printed demand note to every person liable for the payment of any rates or assessments demanding payment thereof within fourteen days after the date of such note and shall leave such note at or send such note by post to the place of abode or place of business of such person or the place of abode or place of business last known to have been occupied by such person:

- (2) The collector may on the expiration of the time specified A.D. 1911.
in the demand note recover any arrears of rates and assessments due by any person or by any number of persons either according to the ordinary procedure before any competent court or by obtaining from the sheriff or any magistrate or any two justices of the peace of the county of the city of Aberdeen a summary warrant to recover such arrears with the addition of ten per centum thereon which warrant the sheriff or magistrate or justices as the case may be shall grant on production of a certificate by the collector that he had given to each such person due notice by demand note as required by this section that the period prescribed by the demand note had expired and that the amount of the rates or assessments was still truly due :
- (3) The said warrant shall authorise the collector or officers of court to enter into any premises in the occupancy of any person so in arrear and to poind seize remove or secure any goods and effects therein belonging to or in the lawful possession of such person or persons or so much thereof as will fully satisfy the arrears due by him or them with the said addition of ten per centum thereon and the said warrant shall also authorise the collector or an officer of the court or a licensed auctioneer after the lapse of four days in the event of non-payment of the said arrears and costs to sell and dispose of the said goods and effects by public auction on three days' notice and apply the price in payment of the said arrears and ten per centum thereon due by such person and the balance shall be paid to such person and the said warrant shall also decern and ordain instant execution by arrestment and the proceedings in the application for issuing and putting in force such warrant may be in the form of the Second Schedule to this Order :
- (4) The collector shall for a period of twelve months preserve the warrants of such seizures and sales and enter in a book to be kept for the purpose the names of the persons proceeded against the rates and assessments due the amount authorised by the

A.D. 1911.

warrant to be recovered and the net proceeds of such sales which book shall be open without any fee to the inspection of all parties interested for one year after the date of each sale:

- (5) The proprietor of any goods and effects which have been either pointed or sold in pursuance of the provisions of this section who feels aggrieved by any proceeding under such warrant may present a petition to the sheriff and the sheriff shall thereupon summarily call before him the party complained of and such petitioner and without written pleadings shall inquire into and decide any dispute question or claim of damage raised by such petition and may award expenses to either party but except to the effect and in the manner hereinbefore provided it shall not be competent for any person to make nor for any court of law to entertain any complaint with respect to any warrant granted by the sheriff or magistrate or justices as the case may be in pursuance of the provisions in this section contained on any account or pretence whatever or with respect to any proceeding of the collector or of any officer or licensed auctioneer in the execution of such warrant and the decision of the sheriff on any such dispute question or claim shall be final and not subject to any form of review or stay of execution.

Repair of
streets.

18. Section 143 of the Aberdeen Municipality Extension Act 1871 as amended by section 69 of the Act of 1881 and section 47 (2) (b) of the Act of 1900 is hereby repealed and the following provisions shall apply and have effect within the city:—

In the case of any street of which the causeway or carriage-way or footways have not been formed of dressed or squared stones or have not in the opinion of the Corporation been previously well and sufficiently laid out or formed or paved or causewayed or flagged and where one-half of the building areas along such street has been built upon or sold or feued out for the purpose of being built upon or as soon as areas to that extent are so built upon or sold or feued out the Corporation may after notice as provided for by section 145 of the Aberdeen

Municipality Extension Act 1871 cause footways with proper gutters or channels and paved crossings to be formed and laid out either on one side or on both sides and along the whole or part of such street as they may direct and the said gutters or channels and paved crossings and footways shall be constructed in such manner and form and of such construction and breadth of dressed granite stones or of such other materials all as the Corporation may direct and the Corporation may cause the causeway or carriageway of such street or such part thereof either in length or breadth as they may think proper to be paved or laid with dressed granite stones or with such other materials and in such manner all as the Corporation shall direct and the expenses incurred in respect thereof (to be ascertained as provided in the last-mentioned Act) shall be repaid to the Corporation by the owners of the lands before or opposite to which such causeway or carriageway footways gutters or channels and paved crossings shall have been made and shall be recoverable as provided in the last-mentioned Act and such street shall thereafter be maintained by the Corporation Provided that in so far as the obligations contained in this section depend on the extent of front feued out or built upon the provisions of this section shall operate and apply—

(A) In the case of every street forming an outlet from the city to any and every two hundred yards of such street in the same manner as if such two hundred yards were the whole length of the street; and

(B) In the case of any street not forming an outlet from the city to any and every two hundred yards of such street in the same manner as if such two hundred yards were the whole length of the street but only as regards the obligation relating to footways.

19. Section 53 of the Aberdeen Extension and Improvement Act 1883 prescribing regulations for the conduct of traffic on the gasworks railway of the Corporation is hereby amended in the following respects (that is to say):—

Regulations
as to traffic
on gasworks
railway.

Regulation (No. 2) The maximum rate of speed for trains upon the railway shall be five miles per hour instead of four miles per hour;

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Regulation (No. 3) The maximum number of wagons or trucks in a train shall be eight instead of five ;

Regulation (No. 4) The person appointed to walk in advance of the locomotive engine shall give sufficient warning of the approach of the train by means of a whistle or other suitable instrument and shall not be required to display a red flag ;

Regulation (No. 5) (Restricting the running of trains to certain hours) is repealed.

Repeal of enactments relating to licensing of places of amusement and billiard rooms.

20.—(1) The resolution of the Corporation dated the 11th day of July 1904 adopting section 80 (Byelaws for theatres and other places of amusement) section 81 (Billiard rooms &c. to be licensed) and section 82 (Ice cream shops &c. to be registered) of the Burgh Police (Scotland) Act 1903 in so far as it relates to the said sections 80 and 81 is hereby rescinded as from and after the commencement of this Order and from and after that date the said sections 80 and 81 shall cease to apply within the city.

(2) From and after the commencement of this Order section 30 (Music halls &c. to be licensed) section 31 (Terms of licence for music halls) section 32 (Suspension of licence for breach of byelaws) and section 33 (Byelaws for billiard rooms) of the Act of 1900 so far as the same were in force at the commencement of this Order shall be and are hereby repealed.

(3) Nothing in this section shall prejudice anything done before the commencement of this Order under the provisions of the said sections 80 and 81 of the Burgh Police (Scotland) Act 1903 or the said sections of the Act of 1900 or the recovery of any penalty recoverable for the failure to comply with any of the provisions of those sections or for contravention of any byelaws made under the authority thereof.

Theatres &c. to be licensed.

21.—(1) No person shall have or keep any house for the performance of stage plays or other theatrical representations or any house music-hall circus exhibition or place of public resort for public dancing music or other entertainment of a like kind into which admission is obtained by payment of money or for money consideration (in this and the two immediately following sections of this Order referred to as a theatre) without being duly licensed by the magistrates and the magistrates may attach to such licence such conditions as they may see fit Every such

licence shall continue in force for any period not exceeding one year unless the same shall be revoked sooner by the magistrates in consequence of a breach of any such conditions. A.D. 1911

(2) The magistrates may from time to time make byelaws for the regulation of theatres and any person contravening any of such byelaws shall for every such offence be liable to a penalty not exceeding five pounds.

(3) The provisions of this section shall not prejudice any powers pertaining by statute to the Lord Chamberlain.

22. A fee shall be payable for every such licence not exceeding twenty shillings and no licence shall be granted to any person except the manager or secretary of the theatre or other person authorised on that behalf by the proprietor of the theatre. Every such holder of a licence shall become bound himself in such penal sum as the magistrates may require not exceeding twenty pounds with two sureties to be approved of by the magistrates in such further sum not exceeding ten pounds each as the magistrates may require for the due observance of the conditions of the licence and of any byelaws for the time being in force for the regulation of theatres and for securing payment of any penalties which the holder of the licence may be adjudged to pay for breach of any of such byelaws or of the provisions of this Order. Terms of
licence.

23. In case of the breach of any of such byelaws by the holder of any licence the magistrates after hearing such holder may suspend the licence for any period and during such suspension the theatre to which the suspension applies shall be deemed to be unlicensed and the person who shall have or keep the same shall in addition to any other penalty he may incur be liable to a daily penalty not exceeding five pounds for each day on which any such theatre shall remain open during such period of suspension. Suspension
of licence for
breach of
byelaws.

24. The magistrates may from time to time make byelaws for the licensing of billiard rooms and bagatelle rooms and may in such byelaws provide for the safety and comfort of the public for the maintenance of order and the suppression of disorderly conduct and any person contravening any of such byelaws shall be liable to a penalty not exceeding five pounds. Byelaws for
billiard
rooms.

25. The provisions and enactments contained in Parts XXXII. and XXXIV. of the Act of 1862 intituled respectively "Byelaws" and "Jurisdiction of police court" shall extend and apply Application
of certain
provisions of
Aberdeen

A.D. 1911.

Police and
Waterworks
Act 1862.

Costs of
Order.

to the provisions of the four immediately preceding sections of this Order.

26. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of moneys to be borrowed for that purpose under this Order or out of the public rates or municipal revenues of the city.

The SCHEDULES to the foregoing Order.

THE FIRST SCHEDULE.

PART I.

LANDS FOR REFUSE DESTRUCTOR AND ELECTRICAL GENERATING STATION.

That piece of land situated on the north side of Nelson Street in the city parish of Aberdeen and in the city and county of Aberdeen containing an area of 5 acres 3 roods 24 poles or thereabouts and comprehended within the following boundary Commencing at a point on the north side of Nelson Street 40 yards or thereabouts west of the centre of King Street at its junction with Nelson Street proceeding thence westwards along the north side of Nelson Street to the Great North of Scotland Railway (Waterloo Branch) thence north-westwards along the north-east boundary of that railway to Mounthooly thence northwards along the east side of Mounthooly and King's Crescent for a distance of 69 yards or thereabouts thence eastwards along the south boundary of the rope works belonging or reputed to belong to Messrs. Skene & Goodbrand rope and twine manufacturers for a distance of 194 yards or thereabouts thence southwards along the west boundary of the City Auction Mart belonging or reputed to belong to Messrs. John Duncan & Son cattle salesmen to the point of commencement.

PART II.

LANDS TO BE HELD FOR GENERAL PURPOSES.

That piece of land situated on the south side of Advocates' Road and west side of King Street in the city parish of Aberdeen and in the city and county of Aberdeen and containing an area of 3 acres 3 poles or thereabouts.

THE SECOND SCHEDULE.

A.D. 1911.

FORM OF PETITION AND CERTIFICATE BY THE COLLECTOR OF RATES AND
ASSESSMENTS.

Unto the Honourable the Sheriff of Aberdeen Kincardine and Banff
[or—a Magistrate of the city and Royal burgh of Aberdeen or—Justices
of the Peace for the county of the city of Aberdeen].

The Petition of A.B. Collector of Rates and Assessments for the city
and Royal burgh of Aberdeen.

Humbly sheweth—

That there is herewith produced to your Lordship [or your honour—
or your honours] a list of persons and companies who are in arrear of the
rates and assessments imposed by the lord provost magistrates and town
council of the city and Royal burgh of Aberdeen for the year from Whit-
sunday . . . to Whitsunday . . . and which list is written on
folios . . . to . . . of this book and subscribed by the petitioner as relative
hereto :

That the said rates and assessments were payable on the . . . day of
November . . . :

That the petitioner hereby certifies that after the said rates and assess-
ments were due the petitioner made a demand on all the said persons and
companies by written or printed demand notes left at the respective places
of abode or places of business of such persons and companies demanding
payment within fourteen days after the date of such notice of the said
rates and assessments whereof the cumulo amounts are in said list set
against their names respectively but that certain of the said persons and
companies have refused or neglected to pay the said rates and assessments
or part thereof :

That the persons and companies who have so failed to pay are those
against whose names respectively the rates and assessments remain not
marked in the said book as fully paid and that those persons and com-
panies are in arrear to the extent respectively of the cumulo amounts of
said rates and assessments set against their respective names or of the
balances thereof remaining after deduction of the sum entered against
the respective names of said persons and companies as having been paid
to account :

That the petitioner is entitled to apply to your Lordship [or your
honour—or your honours] for a summary warrant to recover the said
arrears by virtue of section 17 of the Aberdeen Corporation Order 1911.

May it therefore please your Lordship [or your honour—or your
honours] to grant warrant to the petitioner or officers of court to enter

A.D. 1911. into any premises in the occupancy of any of the said persons or companies so in arrear and to poind seize remove or secure any goods and effects therein belonging to or in the lawful possession of such persons or companies or so much thereof as will fully satisfy the arrears of rates and assessments due by them respectively with the addition of ten per centum thereon and warrant also to the petitioner or officers of court or any licensed auctioneer after the lapse of four days in the event of the non-payment of said arrears and ten per centum thereon to sell and dispose of said goods and effects by public auction on three days' notice of the sale either on the premises or at such public place as may be fixed by the sheriff [*or magistrate or justices*] and apply the proceeds in payment of the said arrears and ten per centum returning any balances to the owners and the petitioner further craves your Lordship [*or your honour—or your honours*] to decern and ordain instant execution by arrestment of the goods debts and sums of money of the said persons or companies in satisfaction of the said rates and assessments due by them respectively and of ten per centum thereon.

A.B. Collector.

Aberdeen [Date] The sheriff [*sheriff substitute or magistrate or justices*] grants warrant and decrees all as craved.

C.D.

THE THIRD SCHEDULE.

SECTIONS 45 AND 60 OF THE BURGH POLICE (SCOTLAND) ACT 1903
REFERRED TO IN THE SECTION OF THIS ORDER THE MARGINAL NOTE
WHEREOF IS "ADOPTION OF SECTIONS 45 AND 60 OF BURGH POLICE
(SCOTLAND) ACT 1903."

Fractions of
a pound not
to be
reckoned in
assessing.

45. In assessing levying and collecting all rates and assessments imposed by the town council under any Act any fractional part of a pound exceeding ten shillings shall be reckoned as one pound of rateable rent or value and any fractional part less than ten shillings shall not be taken into account.

Supple-
mentary
valuation
roll.

60. The county council and magistrates of burghs respectively acting under the Lands Valuation (Scotland) Act 1854 in addition to the ordinary valuation roll made up under the said Act as at fifteenth August in each year shall between the first day of January and the first day of March in each year if the town council so resolve before the said first day of January cause to be made up by the assessor under the said Act a supplementary valuation roll showing the yearly rent or value and other

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particulars as in the ordinary valuation roll of all lands and heritages that may have come into existence or occupancy within any burgh after the completion of the ordinary valuation roll last made up and also including a column stating the respective dates when such lands and heritages came into existence or occupancy but excluding any column such as mentioned in section nine of the Representation of the People Act 1884 and all statutory provisions applicable to the principal valuation roll shall mutatis mutandis be applicable to the said supplementary roll and the town council shall be entitled to impose supplementary assessments in respect of all lands and heritages in such supplementary roll proportionate to the respective periods between the dates so stated and the term of Whitsunday next following for all purposes for which the town council may be entitled to assess which supplementary assessments shall be made so far as possible in the same manner under the same conditions and with the same powers of recovery as are applicable to the corresponding assessments for the whole year. All expenses incurred by a county council in giving effect to the provisions of this section in any burgh shall be requisitioned for and paid in terms of section sixty-six of the Local Government (Scotland) Act 1889.

A.D. 1911.

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